

STATE OF NEW YORK

8638--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 22, 2025

Introduced by M. of A. KIM -- read once and referred to the Committee on Consumer Affairs and Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to multi-service health clubs

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 1 of section 623 of the general business law,
2 as amended by chapter 660 of the laws of 1990, is amended and a new
3 subdivision 6 is added to read as follows:

4 1. No contract for services shall require payment by the person
5 receiving service or the use of the facilities of a total amount in
6 excess of three thousand six hundred dollars per annum, as cumulatively
7 and annually adjusted for inflation based upon the US Consumer Price
8 Index, provided, however, that this subdivision shall not apply to
9 contracts relating solely to the use of tennis, platform tennis [~~or~~] and
10 racquet ball facilities, and multi-service health clubs.

11 6. For the purposes of this section, the term multi-service health
12 club shall mean any New York based health club or gym which offers or
13 offers access to three or more of the following amenities: digital plat-
14 form services such as on-demand classes; individualized training
15 programming; fitness instructor training and/or certification; spa
16 treatments, co-working space, childcare; recurring group fitness class-
17 es; adult and/or youth sports programming; locker room with amenities
18 such as laundry service, steam rooms, and other toiletries; swimming
19 pool or swimming pools, or on-site food and beverage.

20 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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